

As noted above, the operative complaint at the time was the FAC which was filed on October 20, 2025.

“It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.” (*Foreman & Clark Corp. v. Fallon*, (1971) 3 Cal.3d 875, 884, quoting *Meyer v. State Board of Equalization* (1954) 42 Cal.2d 376, 384.) “The original ceases to ‘perform any function as a pleading.’” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215.) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading **or as a basis for judgment.**” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 emphasis added.)

As the original Complaint had no legal effect at the time the default was entered based upon it, given the filing of the FAC prior to the request for default, the default is void and cannot be enforced. As such, it must be set aside.

Conclusion

Defendant CWS Construction’s motion to set aside the default is **granted**. The default entered on January 20, 2026, is set aside. Defendant CWS Construction shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

11. 9:00 AM CASE NUMBER: MSC18-02413
CASE NAME: ZERIUS COLLINS VS. HASA, INC. A CALIFORNIA CORPORATION
*MOTION/PETITION TO COMPEL ARBITRATION CONFIRM FINAL ARBITRATION AWARD
FILED BY: GUERRERO, ALEX
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Alex Guerrero’s (Plaintiff) motion to confirm final arbitration award against Defendant Hasa, Inc.

For the following reasons, **Plaintiff Alex Guerrero’s motion to confirm final arbitration award is granted.**

Procedural Background

The arbitration award at issue stems from this action, which was filed by Plaintiff Zerius Collins (“Collins”) on November 29, 2018, in this Court (the “Action”) alleging a single cause of action for penalties under the Private Attorneys’ General Act (“PAGA”). On May 1, 2019, Plaintiff Collins filed a First Amended Complaint adding Plaintiff Alex Guerrero. Plaintiff Guerrero was employed by Defendant Hasa Inc at their Pittsburgh facility.

On November 3, 2021, the Court denied Defendant’s motion to compel Plaintiff’s claims to arbitration. While an appeal of the Court’s order was pending, the United States Supreme Court decided *Viking River Cruises, Inc. v. Moriana*. As a result, on April 19, 2023, the Parties stipulated that

Plaintiff's individual PAGA claims asserted in the Action would be submitted to individual arbitration and his representative PAGA claim would be stayed pending completion of the individual arbitration. On April 21, 2023, this Court ordered both Plaintiff Collins and Guererro to submit their individual PAGA claims to arbitration pursuant to the Parties' joint stipulation. (Reply Sabourian Decl. ¶ 5.)

On August 21, 2024, Collins accepted the settlement offer. (Reply Sabourian Decl. ¶ 18.) On February 27, 2025, Arbitrator Schaedel granted the Stipulated Consent Award for Collins's arbitration. (Reply Sabourian Decl. ¶ 19, Ex. G.) On June 26, 2025, the Hon. Edward G. Weil signed the proposed Order Granting Petition and Confirming Contractual Arbitration Award to confirm the February 27, 2025 Stipulated Consent Award for Collins's arbitration granted by Arbitrator Schaedel. (Reply Sabourian Decl. ¶ 19, Ex. K.)

On July 7, 2025, Defendant filed and served a Notice of Entry of Judgment or Order. Pursuant to that Notice of Entry of Judgment or Order, a judgment, order, or decree was entered in this action on July 3, 2025. Exhibit A to that Notice of Entry of Judgment or Order was a Judgment "On Stipulation." The Judgment identified the Plaintiff as only Zerius Collins. The Judgment stated: "Plaintiff and defendant agreed (stipulated) that a judgment be entered in this case. The court approved the stipulated judgment and the signed written stipulation was filed in the case." Moreover, the Judgment stated that "Judgment is entered according to the stipulation of the Parties." (Reply Sabourian Decl. ¶ 24, Ex. L.)

Plaintiff Guerrero received a Final Arbitration Award on October 9, 2025. (Reply Sabourian Decl. ¶ 10.)

Legal Standard for Judicial Review of Arbitration Awards

Section 9 of the FAA (9 U.S.C. § 9) governs confirmation of arbitration awards:

If the parties in their agreement have agreed that a judgment of the court shall be entered upon the award made pursuant to the arbitration, and shall specify the court, then at any time within one year after the award is made any party to the arbitration may apply to the court so specified for an order confirming the award, and thereupon the court must grant such an order unless the award is vacated, modified, or corrected as prescribed in sections 10 and 11 of this title. (9 U.S.C. § 9.)

"Review of an arbitration award itself is 'both limited and highly deferential.'" (*DeMartini v. Johns* (9th Cir. June 7, 2017) 693 F. App'x 534, 436; quoting *Sheet Metal Workers' Int'l Ass'n v. Madison Indus., Inc.* (9th Cir. 1996) 84 F.3d 1 186, 1190). A court will set aside an arbitrator's decision "only in very unusual circumstances." (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 942.)

Section 10 of the FAA provides a court may vacate an arbitration award under the following circumstances:

- (1) where the award was procured by corruption, fraud, or undue means;
- (2) where there was evident partiality or corruption in the arbitrators, or either of them;
- (3) where the arbitrators were guilty of misconduct in refusing to postpone

the hearing, upon sufficient cause shown, or in refusing to hear evidence pertinent and material to the controversy; or of any other misbehavior by which the rights of any party have been prejudiced; or,
(4) where the arbitrators exceeded their powers, or so imperfectly executed them that a mutual, final, and definite award upon the subject matter was not made. (9 U.S.C. § 10(a)(1)-(4).)

These grounds are “the exclusive means by which a court reviewing an arbitration award under the FAA may grant vacatur of a final arbitration award.” (*Biller v. Toyota Motor Corp.* (9th Cir. 2012) 668 F.3d 655, 664; citing *Hall St. Assoc., LLC v. Mattel, Inc.* (2008) 552 U.S. 576.)) An arbitrator exceeds her power not by merely interpreting or applying the governing law incorrectly, but when the award is “completely irrational, or exhibits a manifest disregard of law.” (*Kyocera Corp. v. Prudential-Bache T Servs.* (9th Cir. 2003) 341 F.3d 987, 997.) To vacate an arbitration award for manifest disregard of the law, “[i]t must be clear from the record that the arbitrators recognized the applicable law and then ignored it.” (*Mich. Mut. Ins. Co. v. Unigard Sec. Ins. Co.* (9th Cir. 1995) 44 F.3d 826, 832.)

Section 11 of the FAA provides that a court may modify or correct an arbitration award under the following circumstances:

- (a) where there was an evident material miscalculation of figures or an evident material mistake in the description of any person, thing, or property referred to in the award;
- (b) where the arbitrators have awarded upon a matter not submitted to them, unless it is a matter not affecting the merits of the decision upon the matter submitted;
- (c) where the award is imperfect in matter of form not affecting the merits of the controversy. (9 U.S.C. § 11(a)-(c).)

These three provisions “substantiat[e] a national policy favoring arbitration with just the limited review needed to maintain arbitration’s essential virtue of resolving disputes straightaway.” (*Hall St. Assoc., LLC v. Mattel, Inc.* (2008) 552 U.S. 588.)

Analysis

Defendant Hasa’s Objections to Jurisdiction are Overruled

Code of Civil Procedure 1292.6 provides that, “[a]fter a petition has been filed under this title, the court in which such petition was filed retains jurisdiction to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding.”

Final Judgment Rule

Defendant Hasa argues that July 7, 2025, stipulated judgment provides: “This judgment shall be given collateral estoppel effect and is binding on all Parties and on the State of California to the extent Plaintiff was authorized to initiate this action in a representative capacity on behalf of the State of California.” (McLoughlin Decl., Ex. 2, p. 5, § 8 [quoting the language of § 8 of judicial council form JUD-

100].)

As pointed out by Plaintiff Guerrero, the July 7, 2025, stipulated judgment only pertained to Plaintiff Zerius Collins. (Reply Sabourian Decl., ¶ 24, Ex. L; Ex. 2, p. 1.) Defendant is correct that the July 7, 2025, stipulated judgment has collateral estoppel effect and is binding on all Parties, but only for the claims of Plaintiff Zerius Collins. The July 7, 2025, stipulated judgment no preclusive effect on Plaintiff Guerrero's claims.

Los Angeles County Action

Pursuant to Code of Civil Procedure 1292.6, after a petition compel arbitration, Contra Costa retains jurisdiction to determine any subsequent petition involving the same controversy and any such subsequent petition shall be filed in the same proceeding. A petition to compel arbitration under CCP 1281.2 is the procedural mechanism to initiate the arbitration process in court. An order compelling arbitration deriving from a stipulation to arbitrate triggers this retained jurisdiction.

On April 21, 2023, this Court ordered Plaintiff and Defendant to arbitration pursuant to the Parties' joint stipulation. (Sabourian Decl., ¶ 5.) Thus, this Court has jurisdiction to hear this motion.

Confirm Arbitration Award

"Neither erroneous legal conclusions nor unsubstantiated factual findings justify . . . court review of an arbitral award under the statute, which is unambiguous in this regard [and] a court must confirm an arbitration award unless it is vacated, modified, or corrected as prescribed in §§ 10 and 11." (*Bosack v. Soward* (9th Cir. 2009) 586 F.3d 1096, 1102 (citations omitted).)

This Court ordered Plaintiff and Defendant to arbitration pursuant to the Parties' arbitration agreement, thus rendering the agreement binding and enforceable between the Parties. The Final Award issued on October 9, 2025, is properly supported. This motion is made within one (1) year of the date that the Final Award was issued. Finally, Defendant does not bring up any grounds to vacate, modify, or correct the award under sections 10 (9 U.S.C. § 10) and 11 (9 U.S.C. § 11) of the FAA.

The Court has reviewed the 30-page Interim Award, the 26-page Ruling on Attorney's Fees and Costs, and the two-page Final Award incorporating the two previous rulings. All of the arbitration rulings and awards are detailed, seemingly impartial, and otherwise facially valid. Parties seeking vacatur of an arbitration award have the burden of showing the arbitrator committed error, and such parties must show they were prejudiced by the alleged corruption, fraud or undue means. (*Comerica Bank v. Howsam* (2012) 208 Cal.App.4th 790, 791.)

Defendant's Jurisdictional Objection Rather than an Opposition

On November 18, 2025, the Parties attended a Case Management Conference where Defendant's counsel informed the Court that Defendant's position was that the Court did not have jurisdiction because judgment had been entered as to Collins's claims and that Defendant had filed a petition in Los Angeles County to correct and vacate the Arbitration Award. (Reply Sabourian Decl. ¶ 14; Exhibit D at 4:3-27.) In response, the Court stated that the hearing on Plaintiff's Motion to Confirm would stay on calendar and that Defendant needed to file a motion. (Id.; Exhibit D at 8:27-9:2.)

On February 24, 2026, the Parties attended a Case Management Conference where the Court reminded Defendant's counsel that Defendant needed to file an opposition to Plaintiff's Motion to Confirm. (Reply Sabourian Decl. ¶ 15; Exhibit E at 3:20-4:2.) The Court also specifically informed Defendant that filing a jurisdictional objection "is not the proper way to resolve the dispute about what the meaning of the prior judgment says." (Id.; Exhibit E at 9:6-13.) Moreover, the Court informed Defendant that the proper way to address Defendant's jurisdictional concerns was for Defendant to file a motion. (Id.)

Defendant Hasa did not file a motion to resolve the dispute about the meaning of the prior judgment, did not file a motion challenging jurisdiction, nor filed an opposition to the instant motion to confirm the arbitration award. This failure to file either motions or opposition was despite two CMC's going back five months from the day of this hearing. Defendant relies on two sentences in its jurisdictional objection requesting the right to oppose the motion on the merits.

Defendant Hasa's stance that filing an opposition would hurt its jurisdictional argument could have been avoided by filing a separate motion challenging jurisdiction and moving ex-parte to shorten time. Defendant Hasa affirmatively chose not to file a substantive opposition to Plaintiff Guerrero's motion to confirm the arbitration award and instead filed a jurisdictional objection.

Conclusion

For the reasons analyzed above, **Plaintiff Alex Guerrero's motion to confirm final arbitration award is granted.**

12. 9:00 AM CASE NUMBER: MSC21-00403

CASE NAME: RAMOS/CHOLICO VS CB ENTERPRISES, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiff Maria Velez Ramos and Yuliana Cholico move for final approval of their class action and PAGA settlement with defendant California Burrito #11, Inc, (CB). The Court granted preliminary approval on December 15, 2025

A. Background and Settlement Terms

The original complaint was filed March 2, 2021, raising claims under PAGA and a class action on behalf of non-exempt employees alleging that defendant violated the Labor Code in various ways, including but not limited to failure to pay meal and rest breaks, minimum wages, and overtime wages.

The settlement would create a gross settlement fund of \$240,000. The class representative payment to each plaintiff would be \$7,500. Counsel's attorney's fees would be \$80,000 (30% of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator (Phoenix) would cap its costs at \$8,000. PAGA penalties would be \$12,000, resulting in a payment of \$9,875 to the LWDA. The fund is non-reversionary. Based on the estimated class size of 2,914, the average net payment for each class member is approximately \$412.